

BEFORE THE STATE BOARD OF BEHAVIORAL HEALTH LICENSURE
STATE OF OKLAHOMA

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FEB 27 2017

State Board of
Behavioral Health Licensure

STATE OF OKLAHOMA, ex rel.,
STATE BOARD OF BEHAVIORAL
HEALTH LICENSURE,

Petitioner,

vs.

EILEEN STOUT,
LPC, LICENSE NO. 4680

Respondent.

Complaint No. 16-LPC-26

CONSENT ORDER

COMES NOW the State of Oklahoma, ex rel, the State Board of Behavioral Health Licensure ("the Board"), by and through its attorney, Marie Schuble, Assistant Attorney General, and Eileen Stout ("Respondent"), and hereby enters into this Consent Order, pursuant to 59 O.S. §1912(A) of the Licensed Professional Counselors Act, 86:10-29-3(b)(2)(C) of the Oklahoma Administrative Code, and 75 O.S. §309(E) of the Administrative Procedures Act. For the purposes of this Consent Order, the following facts are hereby stipulated to by the parties and adopted by the Board:

STIPULATION OF FACTS

1. Respondent is a Licensed Professional Counselor in the State of Oklahoma, holding License Number 4680, and was licensed on or about October 24, 2011.
2. On March 18, 2016, a Request for Inquiry ("RFI") was received by the Board regarding Respondent, alleging a breach of confidentiality.
3. Respondent was the counselor for K.F. from October 2015 until December 14, 2015, and K.F.'s two (2) daughters from October 2015 until November 30, 2015.

4. On more than one occasion, Respondent met with K.F. at her place of work (grocery store cashier) to gather information regarding K.F.'s daughters prior to their counseling sessions. Respondent stated that when members of the public would come to the register where K.F. was working, she would stop talking until all members of the public were out of the area.

5. K.F.'s supervisor, Angela Gibbs, witnessed Respondent visit K.F. multiple times at her register and stay for approximately 20-30 minutes.

6. In order to resolve all issues raised in the Request for Inquiry filed in this matter, the parties agree to the above-stated facts and below Agreed Conclusions of Law and Agreed Order.

AGREED CONCLUSIONS OF LAW

1. The Board has jurisdiction over this matter and Respondent pursuant to 59 O.S. §1905(B)(4) of the Licensed Professional Counselors Act.

2. According to 59 O.S. § 1912 (A)(5), the State Board of Behavioral Health Licensure may deny, revoke, suspend or place on probation any license or specialty designation issued pursuant to the provisions of the Licensed Professional Counselors Act to a licensed professional counselor, if the person has: (5) Engaged in unprofessional conduct as defined by the rules established by the Board.

3. According to 59 O.S. § 1913.1(B)(1), any person who is determined by the Board to have violated any provision of the Licensed Professional Counselors Act, or any rule promulgated or order issued pursuant thereto, may be subject to an administrative penalty.

4. According to the OAC 86:10-29-14(a), the Board may assess an administrative penalty

against an individual if the order includes a finding that the individual: (2) violated any rule within this Chapter.

5. According to OAC 86:10-3-1, "It shall be the responsibility of Licensed Professional Counselors (LPCs), in their commitment to the understanding of human behavior, to value objectivity and integrity, and in providing services, to strive to maintain the highest standards of their profession."

6. According to OAC 86:10-3-3(b)(2), "LPCs shall maintain the confidentiality of any information received from any person or source about a client, unless authorized in writing by the client or otherwise authorized or required by law or court order."

7. Respondent agrees that she did not comply with provisions of OAC 86:10-3-1 and OAC 86:10-3-3(b)(2) in that she met with K.F. at her place of work to gather information about her clients in the public view on more than one occasion.

8. Respondent agrees that as a result, an administrative penalty may be assessed against her.

AGREED ORDER

The Board and Respondent agree to the following Order:

1. Respondent shall take a 6-hour ethics continuing education course, as defined by OAC 86:10-9-2(a)(5)¹. The class must be taken in person, not online.
2. Respondent shall pay an administrative fine in the amount of \$337.50.
3. Respondent understands and agrees that should any future instances be brought to the

¹ OAC 86:10-9-2(a)(5): Professional orientation/ethics - at least one (1) course which deals primarily with the objectives of professional counseling organizations, codes of ethics, legal aspects of practice, standards of

attention of the Board in which Respondent has violated the Licensed Professional Counselor Act or the Oklahoma Administrative Code, the Board reserves the right to prosecute such violations and to consider this Consent Order as a factor in the determination of any sanctions and penalties, if any, should the Board determine that any violation has occurred.

4. Failure to comply with any of the terms of this Order may result in further disciplinary action against Respondent.

PUBLIC RECORD

Respondent acknowledges that once adopted by the Board, this Consent Order becomes a matter of public record, unless otherwise excluded by law.

ACCEPTANCE BY BOARD

This Consent Order will not be submitted for Board consideration until it has been agreed to and executed by Respondent. The Consent Order shall not become effective until it has been approved by a majority of the Board, endorsed by a representative of the Board and been approved by the Oklahoma Office of the Attorney General pursuant to Antitrust Review.

It is hereby agreed between the parties that this Consent Order shall be presented to the Board with a recommendation of approval from the Board at the Board Meeting scheduled for February 24, 2017. Respondent understands that the Board is free to accept or reject this Consent Order and, if rejected by the Board, a formal disciplinary hearing on the Complaint against Respondent may be held.

If the Consent Order is not accepted by the Board, it shall be regarded as null and void. Admissions by Respondent in the Consent Order will not be regarded as evidence against her

preparation and the role of persons providing direct counseling services.

at the subsequent disciplinary hearing. Respondent will be free to defend herself and no inferences will be made from her willingness to have entered into this agreement. It is agreed that neither the presentation of the Consent Order nor the Board's consideration of the Consent Order will be deemed to have unfairly or illegally prejudiced the Board or its individual members and therefore will not be grounds for precluding the Board or any individual Board member from further participation in proceedings related to the matters set forth in this Consent Order.

VOLUNTARY WAIVER OF RIGHTS

Respondent is fully aware of her rights to contest the charges pending against her. Respondent acknowledges these rights include: representation by an attorney at her own expense; the right to a public hearing on any charges or allegations filed; the right to confront and cross-examine witnesses called to testify; the right to present evidence on her own behalf; the right to compulsory process to secure attendance of such witnesses; the right to testify on her own behalf; the right to receive written findings of fact and conclusions of law supporting the decision on the merits of the Complaint; and the right to obtain judicial review of the Board's decision. Respondent, in exchange for the Board's acceptance of this Consent Order, voluntarily waives all of these rights.

COMPLETE AGREEMENT

This Consent Order consists of six (6) pages and embodies the entire agreement between the Board and Respondent. It may not be altered and modified without the express consent of the parties.

Amy Barnett
AMY BARNETT, LPC C.C. Board Member

Dated this 24th day of February, 2017.

IT IS SO ORDERED.

STATE BOARD OF BEHAVIORAL HEALTH LICENSURE

By: Dr. Kelly Collins, LPC
BOARD MEMBER

Dated this 24 day of February, 2017.

I have read the entirety of this Consent Order. I understand that by its terms I waive certain rights accorded me under Oklahoma law. I agree to this Consent Order:

Eileen Stout
EILEEN STOUT, Respondent

Dated this 6 day of February, 2017.

CERTIFICATION OF BOARD ATTORNEY

I believe this Consent Order to be in the best interests of the State Board of Behavioral Health Licensure and the State of Oklahoma for the violations as outlined in the foregoing Consent Order.

Marie Schuble
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State of Oklahoma
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Dated this 6 day of February, 2017.

**ATTORNEY FOR THE STATE OF OKLAHOMA
STATE BOARD OF BEHAVIORAL HEALTH
LICENSURE**